

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK****BRANDON SHACKELFORD,**

Plaintiff,

-against-

**THE CITY OF NEW YORK; P.O.
RAMON MARTINEZ; and JOHN DOE,**

Defendants.

Index No.:

SUMMONSPlaintiff designates New York County
as the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: New York, New York
January 11, 2023**Rickner PLLC**

By:



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TO:

THE CITY OF NEW YORK
New York City Law Department
100 Church Street
New York, New York 10007

P.O. RAMON MARTINEZ
25th Precinct
120 E 119th Street
New York, New York 10035

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COMPLAINT

Plaintiff Brandon Shackelford, by his attorneys at Rickner PLLC, complaining of the Defendants, alleges, upon information and belief and personal knowledge:

NATURE OF THE CASE

1. This is a civil rights action brought against the City of New York and members of the New York City Police Department (“NYPD”), who violated Plaintiff’s rights under the Constitution of the United States and the Constitution of the State of New York, and committed torts actionable under the common laws and statutes of the State and New York.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of Plaintiffs rights under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, Plaintiff’s rights under Article 1, Section 12 of the Constitution of the State of New York, and the common laws of the State and New York.

3. An award of costs and attorneys’ fees is authorized pursuant to 42 U.S.C. § 1988.

4. Pursuant to New York State General Municipal Law § 50-e, Plaintiff filed a timely Notice of Claim with the New York City Comptroller and the Comptroller designated the claim as number 2022PI000796

5. Plaintiff appeared for a hearing under New York State General Municipal Law § 50-h on March 29, 2022.

6. Plaintiff's claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.

7. Venue is properly laid in the Supreme Court of the State of New York, County of New York, because the Plaintiff's claims arose in the County of New York.

8. Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

PARTIES

9. Plaintiff is, and was at all times relevant to this action, a resident of New York County in the State of New York.

10. Defendant the City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible.

11. Defendant the City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

12. Defendant Police Officer Ramon Martinez (Shield No. 25668) (hereinafter "Martinez") was at all relevant times described herein an NYPD officer, employed by the City of

New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

13. Officer Martinez is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

14. Officer Martinez is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

15. Defendant Police Officer John Doe was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of the duties attendant to that employment. He is sued in an individual capacity.

16. The true name and shield number of Defendant Doe is not currently known to the Plaintiff. However, he is an employee or agent of the NYPD. Accordingly, he is entitled to representation in this action by the New York City Law Department upon their request, pursuant to New York State General Municipal Law§ 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiff intends to name said officer as a defendant in an amended pleading once the true name and shield number is known; and (b) that the Law Department should immediately begin preparing P.O. Doe's defense in this action.

17. Collectively, Officer Martinez and Officer John Doe are referred to as the "Individual Defendants."

18. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of NYPD and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on

behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees, and agents of the NYPD.

THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS

19. On or about October 13, 2021, at approximately 9:00 a.m., Plaintiff was lawfully in the vicinity of 809 Lexington Ave, New York, New York 10029, outside of his home.

20. Plaintiff was arrested by the Individual Defendants without probable cause.

21. The Individual Defendants assaulted and battered Plaintiff, and used excessive force in arresting Plaintiff, including over tightening his handcuffs and refusing to loosen the cuffs or respond to Plaintiff's complaints of pain and an injury to his thumb.

22. The Individual Defendants refused to provide Plaintiff with medical treatment.

23. The Individual Defendants also refused to allow Plaintiff to lock his front door, allowing it to remain open and accessible to anyone during his detention.

24. Plaintiff was transported to the 25th Precinct, and then central booking, and was then returned to the 25th Precinct without being arraigned.

25. Plaintiff was then placed into a holding cell where blood, feces, urine, trash, and dirt were rampant.

26. The confinement was further unreasonable because Plaintiff was held for over 24 hours before he was brought before a judge, in violation of New York law.

THE INJURIES TO PLAINTIFF

27. This action seeks damages on behalf of Plaintiff for the extraordinary emotional pain and suffering, loss of liberty, and injuries to his person, that Plaintiff was forced to endure as a consequence of the Individual Defendants decidedly wrongful actions.

28. The Individual Defendants' actions were wanton, reckless, and malicious, as well as in blatant disregard of Plaintiff's civil rights, and as such the Individual Defendants are liable for punitive damages, as is the City of New York under the doctrine of *respondeat superior*.

29. All of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

**FIRST CLAIM FOR RELIEF:
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

30. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

31. The Individual Defendants used physical force against Plaintiff.

32. Plaintiff's seizure and detention at the hands of the Individual Defendants was made in the absence of probable cause. The unwanted physical contact was therefore unlawful and unconstitutional.

33. Even assuming arguendo that Plaintiff's arrest was lawful, the Individual Defendants engaged in the use of force that was excessive, malicious, gratuitous, and with the intention of inflicting physical and emotional harm to plaintiff.

34. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the Individual Defendants therefore are liable to Plaintiff for damages under 42 U.S.C. § 1983.

35. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries.

36. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**SECOND CLAIM FOR RELIEF:
FALSE ARREST UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

37. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

38. The Individual Defendants restrained and arrested Plaintiff without probable cause.

39. The detention was also unreasonable in that the conditions of confinement were dangerous and unsanitary.

40. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the Individual Defendants therefore are liable to Plaintiff for damages under 42 U.S.C. § 1983.

41. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

42. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**THIRD CLAIM
FOURTH CLAIM FOR RELIEF:
ASSAULT AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

43. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

44. The Individual Defendants intentionally, willfully, and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, and that such acts caused apprehension of such contact in the Plaintiff.

45. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

46. As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages.

47. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**FIFTH CLAIM FOR RELIEF:
BATTERY AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

48. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

49. The Individual Defendants intentionally, willfully, and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner struck Plaintiff and handcuffed him without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

50. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

51. As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages.

52. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**SIXTH CLAIM FOR RELIEF:
FALSE ARREST AND FALSE IMPRISONMENT AGAINST
THE INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK**

53. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

54. Plaintiff was arrested, handcuffed, and detained in the absence of probable cause by the Individual Defendants.

55. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

56. Plaintiff was conscious of the confinement and did not consent to such confinement.

57. Plaintiff's arrest is *void ab initio* because Plaintiff was held without arraignment for more than 24 hours without justification.

58. Plaintiff's arrest is *void ab initio* because Plaintiff was taken to a precinct or otherwise taken into custody, rather than being given a summons or other process without such detainment, in violation of New York Criminal Procedure Law § 150.20.

59. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

60. As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages.

61. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**SEVENTH CLAIM FOR RELIEF:
COMMON LAW CONVERSION
AGAINST THE INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK**

62. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

63. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, and damages to his property.

64. Plaintiff was deprived of his keys and was not permitted to lock his apartment before his arrest and detention, nor did the officers themselves lock Plaintiff's apartment before leaving it unattended.

65. Plaintiff never received a voucher for his keys, nor were his keys returned to him.

66. As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages.

67. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

**EIGHTH CLAIM FOR RELIEF:
N.Y.C. ADMIN. CODE §§ 8-801 TO 8-807 AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

68. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

69. Plaintiff's right to be free from unreasonable searches and seizures was violated by the conduct of the Individual Defendants.

70. The City of New York is liable as the employer of the Individual Defendants under New York City Administrative Code § 8-803(b).

71. Qualified immunity is no defense to this claim.

72. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

73. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**NINTH CLAIM FOR RELIEF:
VIOLATION OF ARTICLE I, § 12 OF THE NEW YORK STATE CONSTITUTION
AGAINST THE INDIVIDUAL DEFENDANTS
AND THE CITY OF NEW YORK**

74. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

75. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, § 12, and including, but not limited to the following rights:

- i. freedom from unreasonable search and seizure of person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the use of excessive force.

76. As a direct and proximate result of defendants' deprivations of plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, .

77. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

78. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

79. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the Individual Defendants, as well as the City of New York:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
January 11, 2023

Rickner PLLC

By:



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